

RACE, PRISONS AND WAR: SCENES FROM THE HISTORY OF US VIOLENCE

RUTH WILSON GILMORE

Moreover, the important question for the future in this case is not ‘can it happen again?’ Rather, it is ‘can it be stopped’?¹

What can be said about a political culture in search of ‘infinite prosperity’ that is dependent on a perpetual enemy who must always be fought but can never be vanquished? The United States ranks first in military power, wealth, war-making, murder rates, and incarceration rates. At the time of this writing in the summer of 2008, one in one hundred US adults was locked in a cage, and an additional two per cent were under the direct supervision of the criminal justice system. While the vast majority of people in custody did not kill or violently harm anybody, the centrality of violence to all aspects of US life helps explain the continuum from policing and prisons to war. Rather than rehearse well-known critical histories of stolen land, stolen labour, gender domination, and iron-fisted capital expansion, this essay uses them to historicise current events. It constructs a series of scenes from various periods that, in sum, are designed to demonstrate the persistence and convergence of patterns and systems. The resulting narrative arc is more cumulative than teleological, even though I believe with all my heart there’s an end to violence in both senses of ‘end’: violence produces power, which under the grow-or-die culture of capitalism seems like a slightly erratic expression of self-interest; but violence does not produce *all* power, which means perhaps that its effectiveness might come to a finish.

SOUTHERN LOUISIANA: ARMED WHITE MEN

The violence wrought by Hurricane Katrina in September 2005 focused singularly shocked global attention on the naked, official, and organised depth of US racism. A global chorus – including many residents of the US – insisted they had not really known how bad it still is to be poor and of colour in the richest and most militarily powerful nation-state in the history

of the world. The views of dead Black people floating in the floodwater, and living Black people huddled on roofs or in rowboats, or crammed into the hold of a troop transport ship in dry-dock, or into the vastness of the Sugar Bowl football stadium, either taught or reminded the world what it used to know about the United States: it is difficult and dangerous to be Black in this country. One particularly outstanding image, shot on both still and motion film from hovering helicopters, demonstrated in stark terms how the disaster was – and remains – a political rather than natural phenomenon. Picture: a line of armed white men pointing their Winchester rifles at a group of mostly Black people to keep them from walking across an interstate highway bridge from New Orleans onto the dryer ground of neighbouring Gretna. Professional and amateur pundits marvelled at this scene's explicitness. OK, they reasoned, perhaps unorganised neglect had allowed the levees to crumble, and perhaps the cumulative effects of flooding Black neighbourhoods to save white ones during previous hurricanes and floods stretching back across the century had increased the vulnerability of those locations. But how could anybody explain officers of the law stopping, rather than helping, people in obvious danger of dying? What is the continuity that produces and exploits group-differentiated vulnerability to premature death so casually, without fear of political consequence or moral shame?

Armed white men of Gretna figured in the media a century earlier, when a ready-to-lynch mob hit the streets one afternoon in the year 1900. A New Orleans newspaper account of the hunt concluded: 'The shots brought out almost everybody-white in town, and though there was nothing to show for the exciting work, except the arrest of the Negro, who doesn't answer the description of the man wanted, Gretna's male population had its little fun and felt amply repaid for all the trouble it was put to, and all the ammunition it wasted'.² This was a story of a non-lynching (although the 'man wanted' and others were slain that day) during the long period of Jim Crow rule committed to destroying Black self-determination. Had the 1900 Gretna gang caught its quarry everybody would still have had 'fun' – and used even more ammunition, since one favourite pastime of lynchers was to empty their Winchesters into the victim's *dead* body, to watch the bullets destroy whatever human form remained after burning, cutting, tying, dragging, flaying, disembowelling, dismembering had, in Ida B. Wells' words, 'hurled men [and women] into eternity on supposition'.³

Wells, whose *On Lynchings* was first published in 1892, used the pulpits of international organisations and the press to argue precisely how lynching combined the forces of both violence and ideology – or coercion and consent – to produce and consolidate power. She showed that this combination

particularly provided the capacity to stifle association and competition, minimise ownership, and independence of thought and action, and therefore guarantee the extraction from Black communities of cheap labour (including sex) and profits from the sale of consumer goods. Her aim was not only to bear witness to the fact of each event – that someone died or nearly died – but also to testify to its context, to trace out the event's underlying or true cause. To achieve her end, she examined not only what people did, but also how the stories of their actions were narrated and used. Her exposition and analysis demonstrated the role of lynching in renovating racist hierarchy, gender subordination, and regional accumulation strategies. To do all this hard work every lynching was exemplary, which means it wasn't quick. Lynch mobs did not just take off after somebody with the intent of killing them extra-legally – albeit in most cases with the sanction of sworn state agents from sheriffs to governors to juries. Lynching was public torture, and both press and posse elites encouraged 'everybody-white' to get in on the fun. Mobs thrilled to participate in the victim's slow death, to hear agonised cries for pity and smell roasting human flesh, to shoot dead bodies to smithereens, to keep body parts – ears, penises, breasts, testicles, charred bones – as souvenirs, and to read detailed descriptions of torture in the newspapers. Mobs South, North, and West could usually count on the press to explain away the kidnapping, torture, and murder by invoking the naturalness of human sacrifice – particularly through the repetitive ascription of sub-humanity to the victim – and thereby to vindicate the torturers ('everybody-white') via the contradictory claim of supremacy.

If 'everybody-white' in Gretna were also the 'males' of Gretna, their violence ('fun' – in other words, its distance from 'criminality') cannot be legitimated in the same way for all males. But that's not an end but a beginning, because a dynamic society in which the victors present themselves as the pattern of human nature (in which *homo economicus* strips off his bourgeois haberdashery and becomes the imperially naked human nature in action), invites mighty struggles to establish who counts as masculine. Moreover, Ida Wells spelled out clearly that the 'usual crime' of rape pinned on lynch victims was a fiction, a lie known by everybody in the South. By publishing the open secret that white women had consensual, intimate, illegal sex with Black men, Wells dared name, in black-and-white, a persistent weakness in the hierarchy of entitlements and exclusions organising white supremacy. People then and now think race is natural because of the biology of reproduction, even though the biology of reproduction proves race is made of the social and political meanings assigned to it. And to complicate the issue, sex is not reproduction, while reproduction is always differentiation.

That's a lot to keep under control, and torture helped to perpetuate the normative view that there *should be* control. Thus it made no difference that most of the people tortured did not have illegal sex, consensually or not, with anybody. The convolution here is indicative of the paroxysms of thought and argument that stunningly establish a threshold of sanctioned torture (should non-consensual sex be so punished?) and thereby evade the question of how 'criminality' is naturalised by presenting it as the origin of the explosive horror of violence (the illegal sex) that then must be fought with the explosive horror of violence (the torture and lynching). Enshrouding this necessary convolution are the constantly renovated gender relations that give coherence to the rhetoric of vulnerability and perpetration. The rape of women of colour, and the pervasiveness of domestic violence in all kinds of households, speak both to the gendered hierarchy of racism and to the notion that masculinity is constituted through differentially legitimated force. Thus the spasmodically systematic application of violence to secure material and ideological domination over 'infinite prosperity' is a consistent practice of, rather than a rude eruption in, everyday life.

Representatives of and advocates for Black and poor people doomed, displaced or disappeared in the 2005 events in Grenada and New Orleans followed in Wells' footsteps, and carried grievances and demands for remedy before international bodies. When the United States showed up for its regularly scheduled interview at the United Nations Human Rights Commission in Geneva in 2006, commissioners asked questions about the usually suspect aspects of US life: Why are there so many poor people? Why are there so many prisoners? Why does racism persist in what Wells termed 'the organized life of the country'?⁴ And in particular, why hasn't the devastation that slammed Black and poor communities where the Mississippi flows into the Gulf of Mexico been redressed?

Members of the Human Rights Commission struggled to understand how the United States could be lax in living up to the terms of treaties that it had helped to write,⁵ but even though Article VI of the US constitution specifies that Treaties are part of 'the supreme Law of the Land', Native Americans do not puzzle over the question that (perhaps just for show) seemed to mystify the Geneva commissioners. The US has in fact consistently broken every treaty ever written with indigenous peoples, a habit of disregard unmodulated by a single wrinkle of official remorse, much less by redress for the slash-and-burn movement of white people across North America, from Virginia and New England in the seventeenth century, through coast-to-coast horrors of extermination committed in the name of god, lawgiving, freedom, and accumulation. Puritans described the screams of Indians

being burned alive in torched villages as 'God laughing at his enemies'.⁶ Indian-killers wore the body parts of those they had killed as jewellery, and made other useful and decorative objects from human remains. Through the violent dialectics of murder, dislocation, and disease, more than 95 per cent of indigenous Americans were hurled into eternity within the first few generations after contact with European colonisers.⁷ The rest were removed, relocated, or 'terminated' – an astonishing word, meant to describe dispersal of people from reservations to cities. Weapons of various types, constantly improved to become like the rifles wielded in Gretna in 1900 and again in 2005, enforced indigenous agreement to treaties that consigned first-nation peoples to places and life-ways not their own, the alternative being straightforward extermination.

SOUTHERN NEW ENGLAND: THE MILITARY-INDUSTRIAL COMPLEX

I was born and raised in New Haven Connecticut, a small city dominated at first by tightfisted Puritans but then, over the centuries, shaped by Native Americans (many of whom passed as, or into, white or Black), free Black people, southern and eastern Europeans, and Puerto Ricans, Dominicans and most lately Chicana/os and Mexicans. It became a Catholic city with a significant Jewish population some time in the early twentieth century, during the height of the biggest immigration boom, in absolute numbers, in the history of the US. New Haven was ruled, first overtly and then behind-the-scenes, by WASPs, until they didn't care about it any more, when it ceased being a prosperous polity around 1980. The principle of 'dispersed inequality' that Robert Dahl famously and erroneously concluded in 1957 would be the future of the US multi-ethnic republic appeared to work well enough to warrant his book on New Haven politics during the post-world-war-II period, when the Elm City's two principal products of economic activity, guns and students, were being turned out in high quality and at high cost. But when things started to get bad, in New Haven and throughout the US, Dahl wisely repudiated his signature concept (even though US-trained political science doctoral candidates must, to this day, commit its error to heart).

Every New Haven schoolchild of the long twentieth century learned about the political and material marvels achieved by the white men whose names mark many of the city's major streets: Judges Goffe, Dixwell, and Whalley, who signed the death warrant for Charles I and fled to New Haven when Charles II took the throne; Eli Whitney, interchangeable parts innovator, wartime profiteer, and cotton gin engineer; and Oliver Fisher

Winchester, developer and manufacturer of the repeating rifle – the gun that ‘won’ the west. Youngsters toured their monuments, reported to each other on their accomplishments, and sang and danced their praise in dead-serious amateur musicals performed for elected and other elites.

Killing kings, mass-producing weapons, and framing accumulation as an inalienable right coalesced into white supremacy – the modern theory and practice that explains how, over the past few centuries, authority devolved from the person of the monarch to one, and only one, sovereign race. That race’s divinely conferred and energetically exercised freedom to have, to take, to kill, to rule, and to judge when any of these actions is right or wrong – individually and in the aggregate – kept institutions like Winchester’s arms factory and Yale University humming day and night.

Killing *somebody* has always been on the American agenda, and avoiding being caught in American crosshairs an ontological priority. For example, the lessons white supremacists violently offered to Black GIs after World War I can be summed up in a couple of imperatives: expect nothing, and don’t wear your uniform. Lynching, which had minimally abated during the US’s brief engagement in the war, heated up in the aftermath. There is always an increase in murder in the United States after the country goes off to war and wins – just as there is always a sudden spike after executions – which together form strong evidence that the ‘state models behavior for the polity’.⁸ 1919’s bloody ‘red summer’, best known for the Palmer raids against leftist political and labour organisers, was simultaneously a time of intense racist lynching in the name of white supremacy. The class and race wars were related rather than coincidental. Not surprisingly, J. Edgar Hoover began his rise to power as the chief engineer of capitalist white supremacist policing by serving as technocratic overseer for many of the 1919 actions. He was still around as head of the FBI when over an 18 month period in 1969–71 federal and local police destroyed the Black Panther Party. In 1969, no less than in 1919, rhetoric about violence and violent action brought into view a perpetual enemy who must always be fought but can never be vanquished, presented as simultaneously criminal (acting outside the law) and alien (not belonging to the polity).

But when Black GIs came back after World War II they were not about to ‘expect nothing’ or hide their uniforms in the bottom of a trunk. Having heard from wives and fathers, sisters and friends, about the work radicals were doing stateside to advance the double-victory cause – the fight against US racism as part of the fight against fascism – many decided to fight to get well-paying blue collar jobs in factories. In New Haven, it was making guns. Winchester’s was the biggest factory in the New England gunbelt, and the

rifles used to kill indigenous people were still being produced long after the theft of the continent had been completed. Winchester's became the place where Black men went to work after doing their two or three or four years in the armed service – 'protecting' Berlin, South Korea, Okinawa, Thailand, Laos, South Vietnam. They knew how to shoot. They worked overtime on the assembly line. The wives worked at Yale in low-paying jobs. Their children sang and danced: when they were not rehearsing 'Jump Jim Crow' they warbled about superior inventions and modern points of view.

The modern point of view that sustained the social order was the relentless industrialization of killing, requiring fewer exertions of human physical and mental strength per person hurled into eternity. This was the military-industrial complex: the set of workers, intellectuals, bosses, boosters, places, materials, relationships, ideas, and political-economic capacity to organise these factors of production into the machinery of death. Eventually, President General Dwight David Eisenhower got nervous enough about the military-industrial complex to give it its name. He revered war; he loved capitalism. But did not like how war-making and profit-making had become so thoroughly intermeshed during the Cold War that, he argued, both entrepreneurial innovation and industrial policy would be shaped (and perhaps squeezed) by their might. His anxiety was about 185 years too late, though perhaps it is never too late to say you're sorry. The United States has never had an industrial policy other than the one cohering around warfare, although it became most fully operationalised with the establishment of the Pentagon and consolidated power of the Department of Defense's many constituents in the post-1945 era.

Winchester's New Haven arms factory was taken over by the Olin-Matheson corporation in 1963. After an employee buyout to forestall the factory's closure in 1981 failed, the factory was first acquired by a French holding company, then sold to a Belgian arms-making cartel. By the time the factory was completely shut down in 2006, prosperity had long since exited the city – along with nearly 25 per cent of its population. What was left in its wake were poor Black and Brown people, a spatially segregated arc of extremely well-to-do white households, and a shrunken middle-income stratum struggling to make public schools and services respond as they had in the earlier period. As has been the case across the United States, especially in places where wide gaps between rich and poor coincided with declining local economies, criminalisation became the preferred public response to the problems created by poverty. Young people from households which had been supported by guns produced and exported to kill other people's children now got their hands on imported guns to kill neighbours, family,

and friends. Mostly, however, they were busy being poor.

The expansion of criminalisation is always explained away by reference to a secular rise in violent activity – rape, murder, child molestation are the unholy trinity. Highly rationalized, interpersonal violence did not account for the kinds of laws and techniques used to lock people up. But it served as an excuse, throughout the US, to shift infrastructural investment from schools and hospitals to jails and prisons. The same family that bought and later dumped Winchester's funds the Olin Foundation, which is among the principal sponsors of intellectual hacks who churn out racist reports and sound-bites proving that prison expansion is good for society. The war against the poor has thus oscillated between modes of incorporation (a job in a gun factory or a cot in a cage) that maintain the central force of racial capitalism.

FROM THE GREYHOUND STATION TO ABU GHRAIB: PRISONS AS MANIFEST DESTINY

'Criminal' has long been on the rise in the lexicon of putatively transparent or self-explanatory terms – like race or gender – used to designate fundamental (whether fixed or mutable) differences between kinds of people. Ida B. Wells saw the active connection between race-making and outlaw-making when she wrote: 'To lynch for a certain crime not only concedes the right to lynch any person for any crime but it is in a fair way to stamp us a race of rapists and desperadoes'.⁹ The first public infrastructural accomplishment in post-Katrina New Orleans was to convert the city's Greyhound station into a jail; Burl Cain, the warden of the notorious Angola State prison – a post-civil war plantation where 85 per cent of prisoners are Black and an equal percentage serving sentences for the rest of their natural lives – was put in charge. In other words, the elites didn't start by burying the dead or feeding the living, but they did close a port – the bus station – in order to lock up as many as possible whose exit from the city had not yet been accomplished through dispersal or death. Of all sites, the bus station! In the US buses are symbolic of working-class mobility, and also – especially in the South – of the struggle, organised during the height of the long twentieth-century civil rights movement, to desegregate transportation no less than schools.

The conversion of the bus station into a jail occurred not long after Gretna's police blocked the public bridge, whose very existence symbolised the disinvestment in city centres in favour of the suburbanisation of the 1950s and 1960s. The failed levees of New Orleans themselves were, in their disintegration, symbolic not simply of urban abandonment but rather of a recalibration of (as opposed to a wholesale withdrawal from) the wealth-

producing urban landscapes of the Big Easy, as New Orleans is familiarly called.

In the 25 or so years leading up to Katrina, a massive expansion of prisons and criminalisation spread across the United States, driven by different, but connected, processes of displacement, abandonment, and control. As was the case with kidnapped African labour and stolen indigenous land, a completely involuntary migration – this time around via conviction and incarceration – has once again resulted in the mysterious disappearance of millions of people. This ongoing disappearance is apparently not fully grasped, even in its accomplishment, to judge from the calmness with which most people in the US of all races receive the news that one out of every 100 of the country's adults is locked up in a prison or jail.

The rise of the cage as a large-scale all-purpose solution to problems is a relatively recent phenomenon in world history. Modern prisons were born and grew up with the United States, as impersonal but individualised sites of large-scale social control, in the long historical turn marked by the consolidation of the bourgeois nation-state as the world's fundamental political economic unit, the normalisation of capitalism, and the development of racist science and philosophy to explain it all. Although the reformist purpose of prisons was to end bodily torture, in the United States prison did not replace torture but rather complemented its role in securing social order. In the case of slavery prison was beside the point: there was no purpose in locking up a tool with life in it, while there was plenty of purposefulness in demonstrating to that and other living tools the imminence of premature death as the likeliest respite from endless suffering.¹⁰ And in the case of land theft, there was no point in locking people up at public expense when those indigenous people who had not been slaughtered could be deported to reservations to fend for themselves. But what of others?

By the late 1840s, when various US political factions were debating the merits of permanently grabbing part or all of Mexico, the most clear-eyed proponents of 'Manifest Destiny' hesitated at the prospect of bringing into the union millions of Mexicans who, whatever they were, were not white. Supremacists claimed they had coaxed from (rather than forced into) the landscape a set of nearly identical, locally-controlled governmental institutions run by enfranchised white men. They were determined to maintain the absolute dominion of the sovereign race. Thus the anxiety was not just about having more not-white folks on US territory, but dealing with the problem of the vote – itself symbolic of their material delusion concerning local governance. If the Mexican-become-American men voted, then what of the union of free white men? The master-race republic sought

to expand its wealth without diluting its distribution scheme. As we have seen, in the post-civil war period, public torture was pervasively used, even as the modern prison increasingly became part of rural no less than urban landscapes. Jim Crow, then, did not only work to suppress Black people; it was both template and caution for all who were not members of the sovereign race. That century's globalizing contradictions, characterized by indigenous extermination, wars of territorial expansion, socio-spatial segregation, racist science and eugenics, the redrawing of the world's imperial contours, and the spread of democratized blood-and-soil nationalism, coalesced at the time of the 1898 Spanish-American war, and these forces in sum gave both political and theoretical shape to the twentieth century's continuing human-sacrifice rampage.

The end of the nineteenth century was also defined by the development of the modern business corporation and the rise of engineering and a technocratic view of how to manage systems and structures – whether the DuPont Corporation, the city of Los Angeles, or the State of Mississippi. This combination of 'what' and 'how' formed the basis of 'Progressivism' – a movement misunderstood as an opening through which common people might democratically overcome racial capitalism and white supremacist imperialism. Rather, Progressives developed large-scale complex public and private institutions in order to guarantee the privatised extraction of value from land and other factors of production. As a result, it should not be surprising that Progressivism developed in the South and that Jim Crow was part of its original structure. Under the aegis of Progressivism, prisons became regulated by specialists and segregated by age and gender. This might not sound so bad – except for the fact that before the Progressive period few youngsters and few women were in any prisons anywhere.

Reform, then as now, opened the door to expanding prison under the guise of social improvement. At the same time, in the South the official end to the convict lease system took uncompensated labour (prisoners) out of competition with unemployed free labour; the struggle to end that system was resolved, in racist terms, by the formation of prison plantations for men (mostly Black) so that free workers (profiled white) could be assured of exclusive right to jobs, whether or not the work actually existed. In the late twentieth and early twenty-first century prison expansion has proceeded along these two fronts – as the necessary response to 'criminality', and as a reform of that response. The disfranchisement of prisoners gave George W. Bush the 2000 election.

The rationality underlying prison growth uses both rhetoric and practices of violence to make mass incarceration seem other than what it is – a machine

for producing and exploiting group-differentiated vulnerability to premature death. The intellectuals who have figured out how to exercise racism without naming race have to work extremely hard to realise their goals, and they draw on a template and legacy of thought developed from and for the kinds of wars they imagine the US is fighting when it sends troops and materiel abroad. War and incarceration are supposed to bring good things to the places destroyed in the name of being saved; the devastation wrought overseas in Iraq and Afghanistan is both prefigured and shadowed by the history and current experience of life in the US itself. The convergence of theory and technique come into view in the construction of the perpetual enemy who must always be fought but can never be vanquished.

For the past twenty-five years the militarisation of everyday domestic life in the United States is acted out, in full dress, through, for example, the intensified criminalisation of kids, who in California in 1988 were officially named 'street terrorists'. Another example is the way that people in the US have gotten into the habit of wearing photo identification as though it were jewellery. Everyone expects to be stopped, but the expectation of what happens afterward diverges wildly. In such a milieu of battle-readiness and checkpoint-cheeriness it was remarkably easy for the lawyers defending the Los Angeles policemen who beat up Rodney King to argue, in spite of the visual evidence, that King was 'in control' of the situation. A millisecond of the globally circulated film of his beating shows King trying to get up as he is kicked and pummelled. This effort made King a violent desperado; and while the jury that acquitted the four cops probably would have let them go anyway, because the jurors came from a community of retired police and military and had a narrative of events on which to hang the cops' plea. 'Criminality' worked too well to fail in the courtroom.

The 1992 multicultural uprising against the verdict brought forth both spontaneous and systematic radical understandings of the internal racist logic of US institutions. It also gave a boost to the top-down development of legal and other machinery designed to suppress such opposition to racist policing. Although the Los Angeles police chief at the time was run out of his job, he has been replaced by a series of men for whom policing people of colour is the number one priority (Gretna in 1900 had a 'black detective' to help in that work, just as apartheid South Africa had Black police). Each has demanded a larger police force, arguing that every time something happens like Rodney King being beaten up, or 13 year-old Devin Brown being shot dead because a policeman said he thought the kid, driving a stolen car, was 'a drunk' (which King was), the city will go up in flames if there isn't enough police power to keep it under control. They shop their techniques and

demands around the world (getting rich as consultants along the way). Like the military, they want to surge. And as with contemporary warfare, they claim that what they do benefits the assaulted as well as the assaulter. The triggerman is safer and the target is precise. However, just as the outcome of what is called 'surgical strikes' in the era of increasingly capitalised warfare has meant that more civilians than ever die in each conflict, so it is the case with policing 'the war on the streets' at home.

The police and the military also act to guarantee their institutional role in the apparatus and activities of the state. On the one hand, for a nation conceived in the violence of indigenous extermination and chattel slavery, one might think that the governmental agents charged with 'defence' and 'internal pacification' would have nothing to worry about. But they do have things to worry about – ranging from the technical capacity to capitalise a lot of their individual human labour, to the fact that their opponents work around the clock to abolish policing, prisons, the military and capitalism. The constant agitation produces constant effort to shape both thought and action, and those in uniform use bodily violence as both rhetorical pretext and as disciplining practice in order to reproduce power.

The torture of prisoners by US military jailers at Abu Ghraib in Iraq in 2004 focused singularly shocked global attention on the naked and official depth of US racism. The revelation of the hidden spectacle that soldiers staged for themselves and the various audiences they sent pictures to, occurred a year before Katrina, and in retrospect the similarity of press and pundit reactions to the two outrages is rather compelling evidence of how successfully the production of power through violence works. Once the pictures came to light, one phrase, invoking a physical action, came up several times in English, French and Spanish language newspapers of varying political persuasions in both the 'first' and 'third' worlds: 'when Americans look away'. I can't tell you whether the phrase emerged in one place and then travelled, or whether it is a phrase commonly used to describe Americans' ADHD,¹¹ or something else. What does the phrase assume about 'Americans' and where they look? Were these newspapers right in assuming the real audience for the hidden spectacle, who happened to stumble onto it, could, as has happened historically, look and then look away – not out of denial, much less pity or shame, but rather with a deep and perhaps empathetic shrug for the *torturer*? The fact of torture consigns the tortured to a category of undifferentiated difference, an alien-ness underscored by religious or citizenship distinctions, but not reducible to them since both religion and citizenship can be changed. This suggests that the torture of prisoners today is about constructing racial categories no less than when

white supremacy was being secured a hundred years ago.

Once the evidence of the outrage at Abu Ghraib was paraded before Congressional committees (and in art shows inviting ‘public’ comment in elegant books), the perpetrators were plucked out of the ‘chain of command’ and sent to prison. A lot was made of the fact that two or three of them had been stateside prison guards, and so what could one expect? Analytically, one could expect at least some critics to understand that what the guards did in both the US and Iraq was to help consolidate policing and prisons’ institutional dominance. These institutions aspire to the same degree of security for their existence at the state and local level that the Pentagon enjoys at the federal level. This reduces questions of institutional reform to marginal squabbles over cost-benefits and better practices.

Such a devolution of criticism makes reformist reform very powerful in the way that neoliberalism operates.¹² But it is not only the current set of institutions structured in dominance that matter – though they do. The culture of capitalism – not the culture of *consumption* but of *capitalism* – informs all the tendencies laid out in the scenes depicted in this essay. ‘Grow or die’ works hand-in-hand with structural inequality to keep producing an outcome that people keep being shocked by. And yet, while being shocked, many are also persuaded of the naturalness of the system and are therefore vulnerable to accepting the proposition advanced by the man who coined ‘manifest destiny’ to describe Anglo Saxons’ right to control the planet. As Charles Kingsley, the author of *Westward Ho* wrote in a letter to a friend in 1849: ‘It is expedient that one man die for the people. One tribe exterminated if need be to save a whole continent. “Sacrifice of human life?” Prove that it is *human* life’.¹³

ABOLITION NOW

In the dream of advocates for people locked up in Guantánamo and other known and unknown US military-controlled prisons around the planet, the prisoners should be brought into the US criminal justice system where they can be charged, face their accusers, and be judged by their peers. This seems unlikely as a remedy for the real problem, which is violence, prisons, and warfare. It also proposes that things will cure things – better buildings (Bush’s promise to remedy Abu Ghraib), training sessions (what US professional has not taken a harassment training session in the past two years?), handbooks, and new laws. Yet in regular US prisons and jails, where one out of every 100 US adults lives, torture and terror happen every day. In California every week a prisoner dies from medical neglect of easily-treatable maladies. Throughout the United States the households of prison guards, along with

police and military, are more likely to experience domestic violence than households whose income is not organised around the willingness to use bodily violence.

The proliferation of new prisons in the US was followed by the proliferation of laws to guarantee their present size. And contemporaneously with domestic prison growth, there has occurred a US-led global production of a criminal class without rights, designed to evade rather than fulfil the terms of treaties – including the global prohibition against torture. The concept of a rights-less person is an indirect legacy of the 1857 Dred Scott Supreme Court decision that used race to define who counts as human and therefore who bears human rights. Today the world is full of activists who try to practice human rights as a science, bringing before courts and the ‘organised life’ of the planet claims of injury and demands for redress. Given the power that violence produces, it is perhaps time to pause and consider how the unfinished work of radical abolition might help us in practical as well as theoretical ways to get out of the trap of reformist reform. The violence of torture and official murder, toward the end of stealing labour, land, and reproductive capacity, have driven the history of the United States. If reform within that history is the pattern for change, it can only result in a ‘changing same’.¹⁴

NOTES

- 1 David Stannard, *American Holocaust: The Conquest of the New World*, Oxford: Oxford University Press, 1992, p. xiii.
- 2 Ida B. Wells-Barnett, *On Lynchings*, Amherst: Humanity Books, 2002.
- 3 Ibid, pp. 48, 53.
- 4 Ibid, p. 48.
- 5 Rev. Daniel Buford, Untitled Report, CITY: Peoples Institute for Survival and Beyond, 2006.
- 6 Michael Mann, *The Dark Side of Democracy: Explaining Ethnic Cleansing*, Cambridge: Cambridge University Press, 2005, p. 84.
- 7 Stannard, *American Holocaust*, pp. ix-x.
- 8 D. Archer and R. Gartner, *Violence and Crime in Cross-National Perspective*, New Haven: Yale University Press, 1984.
- 9 Wells, *On Lynching*, p. 41.
- 10 Saidiya Hartman, *Scenes of Subjection*, Oxford: Oxford University Press, 1997.
- 11 Attention Deficit Hyperactivity Disorder – the condition so commonly attributed to children ‘acting up’.

- 12 Ruth Wilson Gilmore, *Golden Gulag: Prison, Surplus, Crisis, and Opposition in Globalizing Capitalism*, Berkeley: University of California Press 2006.
- 13 Quoted in Reginald Horsman, *Race and Manifest Destiny: The Origins of American Racial Anglo-Saxonism*, Cambridge: Harvard University Press, 2002, p. 77.
- 14 LeRoi Jones, 'The Changing Same (R&B and New Black Music)', in Jones, *Black Music*, New York: William Morrow & Co., 1967, pp. 180–211.